

Dev Singh v. State of U.P.

Allahabad High Court · Division Bench · 24 May 2022 · WRIT - C No. - 1319 of 2022 · **Writ disposed; relegated to clause 6.5; coercive action stayed eight weeks**

HEADNOTE

A writ challenging a recovery notice is disposed of without merits examination by relegating the consumer to an objection under para 6.5 of the U.P. Electricity Supply Code, 2005, to be decided after hearing within a fixed time, with coercive recovery stayed for eight weeks or until that decision, whichever is earlier.

FACTUAL SUMMARY

Dev Singh filed a writ petition in the Allahabad High Court seeking certiorari to quash a recovery notice dated 21.09.2021 issued by the power distribution corporation, and mandamus restraining coercive recovery and directing decision of his representation dated 04.10.2021. Counsel for the distribution licensee stated on instructions that the petitioner may file an objection against the impugned demand, which would be decided in accordance with law within a time-bound period.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

recovery-notice-relegated-to-clause-6.5

HOLDING

Without expressing any opinion on merits, a writ against a recovery notice is disposed of by giving the consumer liberty to submit an objection under para 6.5 of the U.P. Electricity Supply Code, 2005 within four weeks; if so filed, the licensee shall decide it in accordance with law within the next four weeks after hearing, and no coercive action on the demand shall be taken for eight weeks or until disposal of the objection, whichever is earlier. ¶ 4-5

PRINCIPLE TAGS

clause-6.5-alternate-remedy-to-writ The writ against the 21.09.2021 recovery notice was disposed of without merits examination by relegating the consumer to a para 6.5 objection. ¶ 4-5

clause-6.5-statutory-remedy-disputed-bill The Court treated para 6.5 as the statutory forum for the petitioner's objection to the impugned demand. ¶ 4

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE RECOVERY NOTICE DATED 21.09.2021 AND OF THE REPRESENTATION DATED 04.10.2021

The Court expressly declined to express any opinion on merits and remitted the dispute to a clause 6.5 objection. ¶ 4